

declared, for a tenant in tail was incapacitated by the statute *de donis* from executing estates (a). With respect to a feoffment for life to uses, there appears to be no reason upon principle (except so far as the language of the act may be thought to furnish any inference), and certainly there is no objection on the score of authority, why the *cestui que use* might not have passed the legal estate by virtue of the statutory power. It has been contended by Mr. Sanders, that on a feoffment for life no use grafted on the life estate could have been declared, on the ground that as the tenant for life held of the reversioner, the consideration of tenure would have conferred a title to the beneficial interest on the tenant for life himself (b). But this reasoning can have no application where the estate for life was not *created*, but was merely *transferred*, for then the assignment of the life estate was not distinguishable in this respect from a conveyance of the fee; in each case there was no consideration of tenure as between the grantor and grantee, but in each case the services incident to tenure were due from the grantee to a third person (1). It is clear that the statute embraced *uses of lands* only, and did not extend either to *special trusts*, or to *trusts of * chattels*: not to special trusts, [*6] because the trustee combined in himself both the legal estate and the use, though compellable in Chancery to direct them to a particular purpose; and not to trusts of chattels, because the preamble and the statute were addressed to *cestui que use* and *his heirs*, and to *feoffees in trust*.

(a) Co. Lit. 19, b.

(b) Sand. on Uses, c. 1, s. 6, div. 2.

(1) **In what case a use might have been declared upon an estate for life.** — The state of the law upon this subject appears to have been as follows: — (1). On the *creation* of an estate for life, had no use been mentioned on the face of the instrument, the tenant for life had held for his own benefit in compensation for his services: Perk. s. 535; B. N. C. 60; Br. Feff. al. Uses, 10; and no use could have been *averred* in contradiction to the use implied. See Gilb. on Uses, 57. (2). Had a use been *expressly* declared by the deed, the tenant had been bound by the terms on which he accepted the estate: Perk. s. 537; Br. Feff. al. Uses, 10, 40; (3), unless a rent had been reserved, or consideration paid, in which case a court of equity would not have enforced the use against the purchaser for valuable consideration: B. N. C. 60; Br. Feff. al. Uses, 40. (4). On the *assignment* of a life estate a use might have been declared, as on a conveyance in fee.